

Master Terms of Service and End-User License Agreement

Last Updated: July 19th, 2026

This Master Terms of Service and End-User License Agreement (collectively, the "Terms") constitutes a legally binding agreement between you, the user ("You," "Your"), and IDIA Data Inc., a Delaware C-Corporation, its subsidiaries, and affiliates ("IDIA," "we," "us," or "our"). These Terms govern Your access to and use of our suite of applications, including but not limited to Life by IDIA, IDIA Pay, and The IDIA Hub, our websites (including thebigidia.com), APIs, and any related services (collectively, the "Services").

Whether you are accessing and/or using the Services as a registered User, a data rights-holding member of IDIA, or an enterprise licensee, by creating an account, accessing, or using the Services, You accept and agree to be bound by these Terms.

Article 1: Accounts, Member Access, and Eligibility

1.1. Account Creation. To use our Services, You must create an account ("User Account"). You agree to provide accurate, current, and complete information during the registration process and to keep this information updated. You agree to provide the name you use in everyday life or your legal business entity name, and to create only one account for your personal or business use.

1.2. Member Access (Life by IDIA & IDIA Pay) & Licensing Portals (The IDIA Hub). IDIA provides specific portals for our different user classes. "Member Access" via Life by IDIA (for individuals) and IDIA Pay (for merchants) are online portals made available exclusively to data rights-holding members of IDIA, allowing members to manage their data source connections, review registered data assets, and track distributed royalties. The The IDIA Hub serves as the "Licensing Portal" for enterprise buyers to manage their data licensing subscriptions.

1.3. Eligibility. You must be at least 18 years of age and have the legal capacity to enter into this Agreement. We try to make our Services broadly available, but you cannot use our Services if:

- You are barred from using the Services under any applicable laws.
- We have previously disabled your account for violations of our Terms or other policies.
- You are a convicted sex offender.

1.4. Account Security. You are solely responsible for safeguarding your account credentials, including your password and any 6-digit PINs assigned for staff access. You agree not to share your password, give access to your account to others, or transfer your account to anyone else without our permission. You agree to notify us immediately of any unauthorized use of your account.

Article 2: The IDIA Platform, Financial Operations, and Settlement

2.1. Fiat Operations, Instant Settlement, and Authority of Record Users may elect to open individual For Benefit Of (FBO) accounts to transact fiat-based business, including purchasing Synapse Credits, executing sales within Life by IDIA and IDIA Pay, and seeding liquidity within the indemnity treasury pools managed by The IDIA Hub. Fiat currency is utilized to facilitate instant settlement options for users and enterprise partners. IDIA serves as the Authority of Record for settlement processing within key industry verticals, including but not limited to music industry publishing administration and the trucking industry. These accounts are strictly for the facilitation of authorized platform activities and are governed by the specific terms of our partner banking institutions.

2.2. Synapse Credits (Virtual Currency) Synapse Credits are proprietary virtual currency units utilized within the IDIA ecosystem, functioning similarly to closed-loop digital assets. Synapse Credits may be purchased using either USDC or fiat currency. All purchases of Synapse Credits are final; they are non-refundable and hold no monetary value outside of the IDIA ecosystem.

2.3. Synapse Credit Consumption and Automated Settlements The utilization of Synapse Credits to access data insights ("Synapse Credit Consumption") triggers an automated payout mechanism. Upon the successful consumption of Synapse Credits, the system executes a programmatic payout to the members who contributed the underlying data. These payouts are distributed from the IDIA Treasury (in USDC) and the Ecosystem Escrow Smart Contract (in IDIA Governance Token). The value of the consumed Synapse Credits is calculated and split proportionally among the contributing data-rights holders based on their specific contribution to the generated data results.

2.4. Technology Service Provider Status and Settlement Finality IDIA Data Inc. operates as a technology service provider and administrative agent; it does not independently hold, custody, or transmit funds. IDIA is responsible for calculating royalty splits and securely routing settlement instructions to our licensed payment processing and banking partners. All ledger updates are processed via ACID-compliant database operations. Finality of fiat settlement is subject to the clearing and settlement rules of the Automated Clearing House (ACH) and our partner banking institutions. IDIA reserves the right to correct ledger errors in the event of fraudulent activity or banking reversals.

2.5. Digital Asset Integration and Custody The IDIA ecosystem facilitates a hybrid financial model, integrating traditional fiat banking rails with blockchain-based assets. This includes the management of Synapse Credits (virtual currency units), USDC (for settlement and payouts), and the IDIA Governance Token. The platform maintains appropriate custodial standards and operational security for both fiat and digital asset classes in accordance with applicable federal and state regulatory requirements. IDIA's role remains that of an administrative agent, ensuring that the movement and distribution of these assets adhere to the technical and compliance specifications of the platform.

Article 3: License Grant and Intellectual Property

3.1. End-User License Agreement (EULA). Subject to your compliance with these Terms, IDIA grants you a limited, non-exclusive, non-sublicensable, non-transferable, revocable license to download, install, and use our applications (Life by IDIA, IDIA Pay, The IDIA Hub) on devices that you own or control, solely for your personal or internal business purposes.

3.2. Restrictions & Conditional Access. The license granted in Section 3.1 is strictly conditioned upon your adherence to the following restrictions. You shall not: (a) decompile, reverse-engineer, or attempt to derive the source code of the Services; (b) use the Services for any purpose other than that for which they are intended; (c) use the Services to build a competitive product; or (d) bypass, disable, or circumvent any Technological Protection Measures (TPMs), secure consent ledgers, or compliance metadata protocols embedded within the Services in violation of 17 U.S.C. § 1201 of the Digital Millennium Copyright Act. Violation of any of these conditions instantly voids this license and constitutes a material breach of contract and potential intellectual property infringement.

3.3. Constructive Notice and Assumed Acceptance. IDIA Data Inc. openly publishes its data registries and the "opt-out" status of its members' digital identities. By operating any automated system, surveillance network, or spatial data capture technology within the physical world, You (including third-party operators and data brokers) assume the legal responsibility to cross-reference IDIA's registries. Capturing the ambient data of an IDIA member without securing a commercial license via the IDIA Hub Trading Desk constitutes Assumed Acceptance of the penalties and liquidated damages outlined in Article 7, regardless of whether You have affirmatively created an IDIA User Account.

3.4. IDIA's Intellectual Property. The Services and all of their content, features, and functionality—including but not limited to all software, algorithms, trademarks, proprietary technology, distributed attribution engines, and the proprietary assets of the Angelic XR and Public Health Divisions—are and will remain the exclusive property of IDIA Data Inc. and its licensors. Our intellectual property, including IDIA, Payments with a Purpose, The IDIA Protocol, and The IDIA Forge, are protected by law. Furthermore, any aggregation, algorithmic interpretation, Vehicle Journey Map, or artificial intelligence "model weights" generated using IDIA's managed data without an active commercial license constitutes an unauthorized derivative work and remains the exclusive property of IDIA Data Inc.

3.5. User Feedback. We always appreciate your feedback and other suggestions about our products and services. You agree that we may use your feedback and other suggestions without any restriction or obligation to compensate you, and we are under no obligation to keep them confidential.

Article 4: Digital Identity, Data Rights Administration, and Royalties

4.1. Universal Digital Identity Protection (Opt-Out) & Assignment of Claims. By downloading the Life by IDIA application or creating a User Account, the User automatically appoints IDIA Data Inc. as their exclusive Authority of Record and administrative agent for the management, licensing, and protection of their **Unified Digital Identity Signature**.

The Unified Digital Identity Signature represents the holistic, isotropic, and absolute digitization of the User's existence, encompassing all ambient data footprints, including but not limited to: (a) Vehicular and spatial identifiers (such as license plate data linked to DMV registrations); (b) Biometric, gait, and thermal identifiers; (c) Digital identifiers (including MAC addresses, IP addresses, and Bluetooth beacons); (d) Any metadata generated by third-party observation that, when aggregated, serves to identify, track, or localize the Member.

This baseline digital identity protection is granted on an opt-out basis. Unless the User explicitly opts out of this protection via account deletion, the User hereby grants IDIA a Limited Power of Attorney and an explicit Assignment of Enforcement Claims regarding their Unified Digital Identity Signature. This legally authorizes IDIA to initiate legal action, seek injunctive relief, and collect damages in its own name against any unauthorized third-party surveillance entities or data brokers that capture, process, or monetize these covered digital rights.

4.2. Enforcement Against Unauthorized Third Parties. Because IDIA operates as the exclusive administrative agent for the User's covered Digital Identity (as established in Section 4.1), any third-party entity that captures, scrapes, or monetizes the User's ambient data or likeness without securing a commercial license through the IDIA Hub Trading Desk is operating without consent. Such unauthorized capture constitutes tortious interference with IDIA's contractual relationship with the User and a conversion of IDIA's managed registered data assets.

4.3. Active Data Rights and Administrative Agency (Life by IDIA). Separate from the baseline identity protection, by actively connecting a specific data source to the Services, the User appoints IDIA as their administrative agent to license those specific data assets to enterprise clients. The User retains ultimate ownership of their raw data. IDIA facilitates the secure transfer of licensing rights and the distribution of corresponding royalties and rewards. The User acknowledges that their legally recognized labor within the IDIA ecosystem consists of securely authenticating and providing affirmative consent for data ingestion. This authorized action generates a verifiable digital registration, legally proving the User holds the rights to license that specific packet of data.

4.4. Merchant Data Rights and Administrative Agency (IDIA Pay). By opting-in to the IDIA Merchant Data Co-op and connecting your point-of-sale or operational data sources via IDIA Pay, the Merchant grants IDIA a license to act as your administrative agent to use your anonymized and aggregated operational data to create business insight reports. The Merchant retains ultimate ownership of their raw operational and transactional data. IDIA facilitates the secure transfer of licensing rights and the distribution of corresponding fiat royalties or business insights. This authorized action generates a verifiable digital registration, legally proving the Merchant holds the rights to license that specific packet of operational data.

4.5. Appointment of Agent (Agent of the Payee). The User (Data Provider) hereby appoints IDIA Data Inc. as its limited Agent for the collection of royalties. When a Data Buyer (e.g., an enterprise client) pays the Data Royalty to IDIA's FBO account or IDIA On-Chain Treasury Wallet, the Buyer has no obligation to the User. The User's data is stagnant until the Buyer consumes Synapse Credits. IDIA's role is strictly limited to the administrative calculation and distribution of funds and host of technology services via its Technology Platform.

4.6. Secure Consent Ledger. Consent for active data monetization is recorded via a secure, verifiable database architecture. You acknowledge that active data ingestion for the IDIA Hub Trading Desk is prohibited until you provide affirmative consent via the mandatory, purpose-specific consent UI.

4.7. Data Portability. As a Merchant (IDIA Pay), you retain the right to the transactional and operational data you generate. IDIA will provide a Bulk Data Export feature allowing you to retrieve your transactions and inventory data in a machine-readable format free of charge.

4.8. Non-Monetized Content Permissions. Separate from the monetized data described above, for any general content you upload to the Services (such as profile pictures, forum posts, or account descriptions), you grant us a non-exclusive, transferable, sub-licensable, royalty-free, and worldwide license to host, use, distribute, modify, run, copy, publicly perform or display, and translate such content solely for the purposes of operating and providing the Services.

4.9. Account Deletion and Data Retention. You may request the deletion of your account at any time. Upon deletion, your right to use the Services ceases, and we will begin the process of deleting your personal information and uploaded content. Please note that data already licensed to enterprise clients via digital registrations prior to your deletion request cannot be retroactively retrieved from those third parties, though further licensing will cease immediately. Retention of certain data may continue for a limited period where required to comply with legal obligations, investigate misuse, or preserve security.

Article 5: Financial Management, Risk Assessment, and Algorithmic Insights

5.1. Algorithmic Insights and Scoring. As part of the Services, IDIA may utilize operational data and transaction history to generate algorithmic scoring, business health metrics, and institutional risk assessments. EVERY BUSINESS DECISION REPRESENTS AN ASSUMPTION OF RISK, AND IDIA IN FURNISHING THESE INSIGHTS DOES NOT ASSUME YOUR RISK. IDIA provides these algorithmic assessments merely as one tool in your decision-making processes. IDIA disclaims all warranties, express or implied, regarding the accuracy, completeness, or currentness of any algorithmic insights or health metrics provided.

5.2. FCRA and Credit Use Prohibition. You shall not use any data, scoring, or insights provided by IDIA: (i) as a factor in establishing an individual's eligibility for personal credit or insurance to be used primarily for personal, family, or household purposes; (ii) for employment purposes; or (iii) in any manner that would cause such information to be construed as a "Consumer Report" as defined in the U.S. Fair Credit Reporting Act (FCRA) or comparable consumer credit laws in other jurisdictions.

5.3. Financial Management and Information Requests. To assess your business health and mitigate risk, particularly within IDIA Pay, IDIA may require you to provide financial and operational documentation (e.g., business financial statements, bank statements, or proof of inventory). You agree to provide accurate information regarding your financial affairs as IDIA reasonably requests.

5.4. Setoff and Recoupment Rights. You must pay, or ensure that IDIA is able to collect, any Fees, royalties, penalties, or other amounts you owe to IDIA under this Agreement. If you owe any amounts to IDIA, IDIA reserves the right, to the extent permitted by law, to deduct, recoup, or set off those amounts from: (i) your IDIA Account balance; (ii) funds or royalties payable by IDIA to you; or (iii) any connected User Bank Account or backup Payment Method on file.

Article 6: Fees, Payments, and Taxes

6.1. Service Fees. Certain services, such as withdrawing funds to an external bank account via IDIA Pay, are subject to a processing fee (the "Off-Ramp Fee"), which will be clearly disclosed to you before you complete the transaction.

6.2. SaaS Subscriptions and Consumption. Access to certain features of the The IDIA Hub, including our Data Marketplace, may require a recurring subscription fee. Access to high-value data signals is metered and billed via internal platform credit systems. All purchases made through third-party operational service providers are subject to their respective terms and conditions of use.

6.3. Tax Reporting (1099-K). As a Third-Party Settlement Organization (TPSO), IDIA is required by federal law to report earnings to the Internal Revenue Service (IRS) via Form 1099-K for any User whose distributed royalties exceed the applicable federal or state reporting thresholds (e.g., \$600 USD per calendar year). Users are solely responsible for reporting and paying any applicable taxes on royalties earned through the Services.

Article 7: Prohibited Activities, Unauthorized Surveillance, & AI Scraping Ban

Interaction with IDIA's ecosystem, including accessing the Services, creating an account, or capturing the ambient data footprints managed by IDIA Data Inc., is permitted strictly **provided that** You (including any individual, enterprise, or third-party entity) do not engage in any of the following prohibited activities. A violation of these conditions voids any authorized access and constitutes a direct infringement of IDIA's managed rights:

- **Unlawful Conduct:** Using the Services or any managed data assets for any illegal purpose or in violation of any local, state, national, or international law.
- **Fraud:** Engaging in any fraudulent activity, including but not limited to creating fake accounts, falsifying data inputs, or attempting to manipulate algorithmic royalty distributions.

- **Unauthorized Surveillance & Ambient Data Capture:** Utilizing automated, physical, or digital surveillance infrastructure (including but not limited to Automated License Plate Readers (ALPRs), spatial tracking sensors, or facial recognition networks) to capture, log, process, or monetize the Digital Identity, Image, and Likeness (DIL) or ambient data footprints of IDIA Members without an explicit, active commercial license executed via the IDIA Hub Trading Desk.
- **AI Training & Data Mining Opt-Out:** You shall not access, scrape, or use the Services, or any ambient data footprint or DIL covered by IDIA as the user's Authority of Record, to develop, train, test, ground, fine-tune, or enhance any artificial intelligence, machine learning platforms, computer vision systems, applications, models, or algorithms. All managed data assets and ambient identities are expressly opted out from use for text, data, and spatial mining purposes to the fullest extent permitted under applicable laws.
- **Unauthorized Digital Scraping:** Engaging in or facilitating "spidering," "screen scraping," "database scraping," "indexing," "data extraction," or any other similar activity on, through, or in connection with the Services for any purpose without express written consent.
- **Tortious Interference:** You acknowledge that capturing or monetizing the data of an IDIA member in violation of these prohibitions constitutes tortious interference with IDIA Data Inc.'s exclusive contractual relationship and administrative agency with that member, and a conversion of IDIA's managed registered data assets.
- **System Interference:** Uploading viruses, malicious code, or attempting to interfere with, compromise the system integrity or security of, or decipher any transmissions to or from the servers running the Services or the secure consent ledgers.
- **Intellectual Property Infringement:** Sharing or uploading any content that you do not own or have the necessary rights to share, or that infringes or violates someone else's registered data rights or copyrights.
- **Re-identification Prohibition:** You shall not attempt to re-identify any pseudonymized user data or attempt to violate the integrity of the data lineage, including stripping, altering, or bypassing the Compliance Metadata provided by IDIA.
- **Compliance Mandate:** You agree to adhere to all applicable Federal Acquisition Regulations (FAR) and the New Federal Contracting Anti-DEI Policy.
- **Liquidated Damages for Unauthorized Synapse Credit Consumption and Royalty Bypass:** You acknowledge and agree that data within the IDIA ecosystem possesses perpetual commercial utility. The legally authorized method for extracting value from an IDIA Member's Digital Identity, Image, and Likeness (DIL) or ambient data footprint is exclusively through the consumption of Synapse Credits via the IDIA Hub Trading Desk, which triggers automated fiat royalty distributions to the contributing Members. By engaging in unauthorized surveillance, scraping, or the capture of ambient data footprints managed by IDIA, You are bypassing the mandatory Synapse Credit consumption

mechanism. This unauthorized action constitutes a direct, measurable financial theft of the perpetual royalty distributions legally owed to IDIA's Members and the administrative fees owed to IDIA Data Inc. For each individual instance of unauthorized data capture (e.g., a single automated license plate read or facial recognition log matching an IDIA Member), the Liquidated Damages shall be calculated as the highest-tier fiat retail price of one (1) Synapse Credit, multiplied by a Perpetual Utility factor of one hundred (100) to account for the loss of infinite downstream royalty distributions. This amount is agreed upon as a reasonable estimation of the direct financial harm suffered by the Member and IDIA, and it does not preclude IDIA from seeking additional statutory damages, injunctive relief, or attorneys' fees.

Article 8: Digital Rights, DIL Protection, & Infringement Reporting

8.1. Inbound Notifications (Reporting Infringement on the Services). If you are a rights owner (including the owner of registered data assets within the IDIA ecosystem), or an agent thereof, and believe that any content or data hosted on the Services infringes upon your registered rights or copyrights, you may submit a notification pursuant to the Digital Millennium Copyright Act (DMCA) and IDIA's internal data compliance standards by providing our Designated Agent with the following information in writing:

- A physical or electronic signature of a person authorized to act on behalf of the owner of an exclusive right that is allegedly infringed;
- Identification of the copyrighted work, Digital Identity, Image, and Likeness (DIL), or registered data asset claimed to have been infringed;
- Identification of the material that is claimed to be infringing or to be the subject of infringing activity and information reasonably sufficient to permit us to locate the material;
- Information reasonably sufficient to permit us to contact you (address, telephone number, email address);
- A statement that you have a good faith belief that use of the material in the manner complained of is not authorized by the rights owner, its agent, or the law; and
- A statement that the information in the notification is accurate, and under penalty of perjury, that you are authorized to act on behalf of the owner.

8.2. Outbound Enforcement & Third-Party Infringement (The Liability Shield). Because IDIA Data Inc. serves as the exclusive Authority of Record and administrative agent for its members' baseline Digital Identity, Image, and Likeness (DIL), and ambient data footprints (as established in Article 4), IDIA reserves the right and holds the legal proxy to proactively enforce these rights against unauthorized third parties.

Should IDIA identify any external entity, surveillance network, or data broker capturing, scraping, or monetizing the covered DIL or ambient data of an IDIA member without an active commercial license executed via the IDIA Hub Trading Desk, IDIA is authorized to:

- Issue formal cease-and-desist demands and DMCA-equivalent takedown notices to the infringing entity and their supporting infrastructure providers.
- Pursue legal remedies for tortious interference with contractual relations and conversion of registered data assets on behalf of the affected member(s).

Designated Agent Contact:

IDIA Data Inc. Attention: Eddie Elam, CEO

Email: eddie@thebigidia.com

Article 9: Chatbot and Session Technology

We use technologies that maintain records of your browsing session, chats, and other activities on our Services. These technologies may include session replay that maintains a record of your interactions with our Services, chatbots that maintain a transcript of your chats, cookies, pixels, and other tracking technologies. We use this information to provide the Services and for quality control, customer service, fraud prevention, and security. You shall at all times exercise reasonable care in using any chatbot available on the Services, and you understand and agree that you are responsible for the information you share.

Article 10: Termination

We may terminate or suspend your account and access to the Services immediately, without prior notice or liability, for any reason whatsoever, including without limitation if you clearly, seriously, or repeatedly breach these Terms. You may also terminate this agreement at any time by deleting your account and discontinuing use of the Services. Upon termination, your right to use the Services will immediately cease.

Article 11: Limitation of Liability & Conditional Indemnification

11.1. Disclaimer. THE SERVICES ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, IDIA DATA INC. DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. WE ARE NOT RESPONSIBLE OR LIABLE FOR ANY MALICIOUS CODE, DELAYS, INACCURACIES, ERRORS, OMISSIONS, OR THIRD-PARTY SURVEILLANCE INTERFERENCE ARISING OUT OF YOUR USE OF THE SERVICES.

11.2. Limitation. IN NO EVENT SHALL IDIA DATA INC., NOR ITS DIRECTORS, EMPLOYEES, PARTNERS, AGENTS, SUPPLIERS, OR AFFILIATES, BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING WITHOUT LIMITATION, LOSS OF PROFITS, DATA, USE, GOODWILL, OR OTHER INTANGIBLE LOSSES, RESULTING FROM YOUR ACCESS TO OR USE OF OR INABILITY TO ACCESS OR USE THE SERVICES. OUR AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THESE TERMS OR THE SERVICES WILL NOT EXCEED THE GREATER OF \$100 OR THE AMOUNT YOU HAVE PAID US IN THE PAST TWELVE MONTHS.

11.3. Indemnity. You agree to indemnify, defend, and hold IDIA, its affiliates, directors, officers, employees, and agents harmless from any and all claims, liabilities, damages, losses, costs, and expenses (including reasonable attorneys' fees), arising in any way out of or in connection with: (a) your use of the Services; (b) your breach or violation of this Agreement; (c) your User Content; or (d) any third-party claims resulting from your failure to comply with IDIA's compliance metadata requirements or your introduction of unlicensed, scraped, or otherwise non-compliant data into the IDIA ecosystem.

11.4. Conditional Indemnification (Enterprise). Where a separate Data Processing Addendum (DPA) is executed, IDIA's liability to indemnify you against regulatory fines is CONDITIONED upon your full compliance with all technical requirements of the DPA, including the preservation and maintenance of all required compliance metadata and digital consent records provided by IDIA. Failure to preserve such metadata, or the ingestion of data known to be captured via unauthorized surveillance or scraping, renders this indemnification null and void.

11.5. No Guarantee of Immunity. While IDIA acts as an Authority of Record for the defense of your digital rights, You acknowledge that IDIA cannot prevent the independent and unauthorized actions of third-party surveillance entities. IDIA's enforcement actions are undertaken in its capacity as an administrative agent and do not constitute a guarantee, insurance policy, or absolute immunity against external data scraping or capture attempts. IDIA shall not be held liable for any data captured by third parties prior to or outside of the secured IDIA ecosystem.

Article 12: Governing Law & Dispute Resolution

12.1. Governing Law. These Terms shall be governed and construed in accordance with the laws of the State of Kentucky, United States, without regard to its conflict of law provisions.

12.2. Dispute Resolution. Any dispute arising from or relating to the subject matter of this Agreement shall be finally settled by binding arbitration in Louisville, Kentucky, in accordance with the Arbitration Rules and Procedures of the Judicial Arbitration and Mediation Services, Inc. ("JAMS").

12.3. Limitation on Time to File Claims. ANY PROVISION WHICH MUST SURVIVE IN ORDER TO ALLOW US TO ENFORCE ITS MEANING SHALL SURVIVE THE TERMINATION OF THIS AGREEMENT; HOWEVER, NO ACTION ARISING OUT OF THIS AGREEMENT AND/OR THE SERVICES, REGARDLESS OF FORM OR THE

BASIS OF THE CLAIM, MAY BE BROUGHT BY YOU MORE THAN ONE YEAR AFTER THE CAUSE OF ACTION HAS ARISEN (OR IF MULTIPLE CAUSES, FROM THE DATE THE FIRST SUCH CAUSE AROSE).

Article 13: General Terms

13.1. Entire Agreement. These Terms constitute the entire agreement between you and IDIA Data Inc. concerning the Services and supersede all prior agreements.

13.2. Amendments. We reserve the right, at our sole discretion, to modify or replace these Terms at any time. We will provide at least 30 days' notice before any new terms take effect. By continuing to access or use our Services after those revisions become effective, you agree to be bound by the revised terms.

13.3. Severability. If any provision of these Terms is held to be unenforceable or invalid, such provision will be changed and interpreted to accomplish the objectives of such provision to the greatest extent possible under applicable law, and the remaining provisions will continue in full force and effect.

13.4. Assignment / No Transfer. You may not assign or transfer any of your rights or obligations under these Terms to anyone else without our prior written consent. We may freely assign our rights and obligations under these Terms in connection with a merger, acquisition, or sale of assets, or by operation of law or otherwise.

13.5. No Third-Party Beneficiaries. These Terms do not confer any third-party beneficiary rights.

13.6. Contact. If you have any questions about these Terms, please contact us at eddie@thebigidia.com.